

**CUI**  
**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION**  
**SOLICITATION SPE7L125R0005**

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

- 1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.**
- 2. The action being approved is the acquisition of supplies on other than a full and open competition basis.**
- 3. The supplies required to meet the using activity's needs are described as follows:**

| BRIEF DESCRIPTION        | NSN/P/N        | QUANTITY | OPTIONS         | EST. VALUE    | AMSC |
|--------------------------|----------------|----------|-----------------|---------------|------|
| LENS, OPTICAL INSTRUMENT | 6650-013488267 | 22 boxes | 100% (44 boxes) | \$ [REDACTED] | 3/B  |
|                          |                |          |                 |               |      |
|                          |                |          |                 |               |      |

Identify end item, weapon system, or class of item: COMMON SYSTEMS

The solicitation is for a DLA Direct Requirement, PR 7008489181. WSIC: F, WSDC: EGN

ESTIMATED BASE VALUE

BASE QTY OF 22 Boxes; \$ [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS)

TOTAL QTY OF 44 BOXES; \$ [REDACTED]

- 4. The statutory authority permitting other than full and open competition is:**

☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

- 5. If restricted to the only source(s) of supply, include source(s) and CAGE code:**

Optical Coating Laboratory (CAGE 11536) and Excelitas Technologies Corp (CAGE 06WL5), are the only sources specified on the source control / item drawing because the Government has drawings or data available but does not have complete drawings or data to make the acquisition fully competitive."

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

Controlled by: DLA Land and Maritime  
Controlled by: FLSC  
CUI Category: PROCURE/SSI  
Distribution/Dissemination Control: FED ONLY  
POC: [REDACTED]

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The use of the authority cited is based on:

[ X] *AMSC B*. This part must be acquired from a manufacturing source(s) specified on a source control or selected item drawing as defined by the current version of DoD-STD-100. Suitable technical data, Government data rights, or manufacturing knowledge are not available to permit acquisition from other sources, nor qualification testing of another part, nor use of a second source part in the intended application. Although, by DoD-STD-100 definition, altered and selected items shall have an adequate technical data package, data review discloses that required data or data rights are not in Government possession and cannot be economically obtained. If one source is available, AMCs 3, 4, or 5 are valid. If at least two sources exist, AMCs 1 or 2 are valid.

Product Specialist, Roberta Craigo, certified the technical data certification on 10/4/2024 (Attachment #1).

- DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government.
- There is no outstanding DLA Form 339 request for additional sources.

**6. Efforts to ensure that offers are solicited from as many sources as practicable are:**

[ X] The acquisition will be synopsized on SAM.gov for at least 15 business day prior to the solicitation opening. At the completion of the synopsis period, the Purchase Request (PR) will be solicited on the internet for at least 30 days via the DLA Internet Bid Board System (DIBBS).

**7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.**

- This PR is a definite quantity contract, for a base quantity of 22 boxes, with a 100% Option, for a total quantity of 44 boxes. A price analysis will be conducted utilizing historical pricing, the Producer Price Index (PPI), and learning curve analysis. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable for this procurement.

**8. Market Research/Efforts to Obtain Competition:**

- Market researched consisted of past procurement review, market survey(s) responses from interested parties, internet sources, and email communication with other acquisition specialists knowledgeable with this item.
- Procurement History:

| Smart Number (PIIN) | Source Type | TIC | Vendor CAGE Code | Vendor Name                    | Quantity | Unit | Net Price   | Curr | Per | Award Date | Incoterms | Prc Reas | SAP PO No. | Wgt Avg | Surplus Material |
|---------------------|-------------|-----|------------------|--------------------------------|----------|------|-------------|------|-----|------------|-----------|----------|------------|---------|------------------|
| SPE7L733P1015P00001 | A           | K   | 11536            | OPTICAL COATING LABORATORY, LL | 9.000    | BX   | 39122.00000 | USD  | 1   | 2/13/2023  | 1         | BY       | 8509681896 |         | N                |
| SPE7L732P2671P00001 | B           | G   | 58985            | AVIARMS SUPPORT CORP           | 12.000   | BX   | 15772.00000 | USD  | 1   | 8/17/2022  | 1         | BJ       | 8509299424 |         | Y                |
| SPM7LA13C0002       | A           |     | 11536            | OPTICAL COATING LABORATORY, LL | 44.000   | BX   | 8994.00000  | USD  | 1   | 2/6/2013   | E         | BG       | 4523629433 | X       | N                |
| SPM4L110C0001       | A           |     | 11536            | OPTICAL COATING LABORATORY, LL | 178.000  | BX   | 8970.00000  | USD  | 1   | 12/7/2009  | E         | PF       | 4512730104 | X       | N                |

- A sources sought notice was posted to SAM.gov from 10-29-24 and closed on 11-6-24. A blank copy of the market survey was attached to the notice for any interested parties. The only response received was on Oct 30<sup>th</sup> from Firebird Optics, but they were not an approved source. I sent them the SAR's packet to get approved.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

[ X] A market survey was conducted by email on October 29, 2024 with a requested return of the market survey's no later than end of business on November 4, 2024

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Total number of vendors contacted by email: 3

- OPTICAL COATING LABORATORY, LLC (11536)
- EXCELITAS TECHNOLOGIES CORP (06WL5)
- AVIARMS SUPPORT CORP (58985)

A market survey from [REDACTED] at Optical Coating Laboratory (11536) was received on November 13<sup>th</sup>, after the market survey request timeline was over (November 4<sup>th</sup>, 2024). On the market survey the item was listed as not being a commercial item. No other market surveys were returned, and no additional contact was made with the other sources.

Techniques used to conduct survey:

- SAM.gov
- Email correspondence

Types of information requested:

- Business size
- Price breaks
- Commerciality
- Estimated delivery

Summary of information received:

- Optical Coating Laboratory (11536) responded back; they were awarded the last solicitation.  
They deal directly with the Government

[REDACTED]

- No results returned through GSA Advantage.
- Haystack had no listed technical characteristics to utilize.

Information received regarding the commerciality of the item(s): The market survey received back from Justine Licursi at Optical Coating Laboratory (11536) states that the product is not commercially available. I also performed an internet search and was unable to find the product available commercially. The contracting officer determines this item is not a commercial item.

**9. Additional facts supporting other than full and open competition are:**

[ X ] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

**10. A listing of sources, if any, indicating an interest in the acquisition is:**

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- On Oct 30<sup>th</sup>, Firebird Optics replied to the source sought posting, but they are not an approved source.

**11. The following actions are being taken to identify additional sources:** This item is a 3/B, source controlled, meaning that proc note L22 Restriction of alternate offer for source-controlled items will be included in the solicitation.

- Sent Firebird Optics the SAR's packet to help them become an approved source.

**12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304** state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. Prior J&A is attached. See attachment 2.

**I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.**

WHITING.MONICA.  
L.1378381815

Digitally signed by  
WHITING.MONICA.L.1378381815  
Date: 2024.11.15 14:27:39 -05'00'

Contracting Officer

\_\_\_\_\_  
Date

**APPROVAL/CERTIFICATION**

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.  
1251897324

Digitally signed by  
WIEBUSCH.JAMIE.1251897324  
Date: 2024.11.25 16:40:12 -05'00'

Competition Advocate Signature

\_\_\_\_\_  
Date

**APPROVAL REQUIREMENTS**

☐ Up to \$750,000

Contracting Officer

☒ \$750,000 to \$15,000,000

Competition Advocate

Attachment(s):

Attachment 1: Tech Certification Memo

Attachment 2: Previous J& A

Attachment 3: Market Survey From Optical Coating Laboratory